HH 12-26
HCHACC 19/23

PROSECUTOR GENERAL
versus
DANIEL KALIRA
and
CHARLOTTE CHIVAVARIRWA
and
HARRIET KALIRA
and
REGISTRAR OF DEEDS
and
REGISTRAR OF MOTOR VEHICLES

HIGH COURT OF ZIMBABWE
CHIKOWERO J
HARARE, 19 September 2025 and 14 January 2026

Opposed application

K. Mufute for the applicant
A. Masango for the 1st and 3rd respondents
2nd respondent in person
No appearance for the 4th and 5th respondents

CHIKOWERO J:

Introduction

1. This is an application for a civil forfeiture order made in terms of ss 79 and 80 of the Money Laundering and Proceeds of Crime Act [Chapter 9:24] ("the Act").

The Parties

2. The applicant is the Head of the National Prosecuting Authority within which the Asset Forfeiture Unit is located.
3. The first respondent is a male adult who previously worked as a cashier for NetOne Cellular (Pvt) Ltd, a parastatal owned by the Government of Zimbabwe.

4. The second respondent is a female adult who although not married to the first respondent, is mother to a four year old daughter fathered by the latter.

5. The third respondent is maternal grandmother to the first respondent.
6. The fourth and fifth respondents are respectively, the Registrar of Deeds and Registrar of Motor vehicles. They are sued in their official capacities.

The application

7. The applicant contends that the first respondent, while he was still employed by NetOne Cellular (Pvt) Ltd, engaged in some conduct constituting or associated with the serious offences of fraud and theft of trust property as defined in ss 136 and 113(2) of the Criminal Law (Codification and Reform) Act [Chapter 9:23] ("the Criminal Law Code) respectively as well as money laundering as defined in s 8(3) of the Act.
8. The first respondent is appearing at the Magistrates Court sitting at Harare where he is alleged to have defrauded NetOne Cellular (Pvt) Ltd of ZWL$108 259 563-27 worth of airtime vouchers between 29 September 2021 and 23 May 2022. The first respondent is alleged to have splitted the transcations in his then employer's inventory management system by creating an inventory of physical airtime and another of electronic airtime with the splitted amounts adding up to the transaction of electronic airtime disbursed to the dealer. The splitted entries would then be deducted from the inventory instead of deducting only the electronic airtime disbursed to the dealer. According to the applicant, the first respondent unlawfully splitted 198 transactions in the inventory management system creating physical airtime transactions after which he stole all the 198 physical airtime component (valued at ZWL 108 259 563.27). No recoveries were effected.
9. The first respondent is also appearing before the same court on a charge of money laundering. The allegations are that on 20 December 2021 and at Dawn Properties in Harare the first respondent knowingly used proceeds of crime to acquire share number 18 of Stand 913 Mandara Township, with the third respondent posing as the purchaser.
10. As regards the charge of theft of trust property the allegations are that on 1 April 2022 and at NetOne Kopje Plaza Shop the first respondent converted US$5 000 to his own use,

being money received by him in a transaction which he had carried out on behalf of his then employer.

11. The first respondent is alleged to have further concealed the proceeds of these activities, constituting or associated with some criminal conduct, by acquiring a Toyota Hilux registration number AFN 7886, which he proceeded to register in the name of the second respondent.
12. That both the second and third respondents are associated with the first respondent is common cause. The former fell in love with and bore him a daughter. The latter is his blood relative. She is the first respondent's grandmother.
13. That the two properties were acquired during the period that the first respondent is alleged to have occasioned financial prejudice to NetOne Cellular (Pvt) Ltd by engaging in some kind of criminal conduct is also common cause.
14. As already indicated neither of the two properties were acquired and registered in the first respondent's name.
15. This Court will determine whether there is a nexus between the properties and the conduct constituting or associated with the commission of a serious offence.

The Concession

16. In commencing oral submissions Mr Mufute conceded, correctly in my view, that he was no longer persisting with the application for a civil forfeiture order in respect of the BMW 3 series Sedan registration number AFP 8489, Mercedes Benz Sedan registration number AFU 0067, Mercedes Benz Sedan registration number AFI 5420 and Mercedes Benz Sedan registration number AFS 1338.
17. The basis for the concession was that these vehicles were acquired before the dates that the first respondent is alleged to have been engaged, at NetOne Cellular (Pvt) Ltd, in the conduct constituting or associated with a serious offence.
18. In respect of these properties, the application for a civil forfeiture order will be dismissed.

The BMW 320d chassis number WBA3036080NPA532

19. This motor vehicle is not yet registered in Zimbabwe.

20. In responding to the unexplained wealth order granted by this court, the first respondent had explained that this vehicle belonged to one Isaac Mugwagwa, who had lent it to the first respondent.
21. Certain evidence was annexed to the first respondent's statement, and repeated in response to the application for a civil forfeiture order, in this regard.
22. Isaac Mugwagwa was not joined to the proceedings. The matter was set down for argument in such circumstances. It was towards the end of his submissions in reply to Mr Masango and the second respondent's oral submissions that Mr Mufute conceded that it would be remiss of this court to render a decision on the application for civil forfeiture of this vehicle without hearing Isaac Mugwagwa. This observation is in line with the decision of the court in *Prosecutor* v *Chiba* SC 12/24.
23. I will remove that part of the application from the roll.

Stand 913 Mandara Township

24. I am satisfied that this property is tainted.
25. This property was acquired on 20 December 2021 by the first respondent.
26. He purported to have been acting on behalf of his grandmother, the third respondent, both in purchasing the property from Dawn Properties and in paying the cash price in the sum of US$52 000.
27. The third respondent claims that the property is hers, purchased using a gratuity in the sum of US$58 000 sent to her by Thomas Topping, her former employer now resident in Australia.
28. In her response to the unexplained wealth order the third respondent attached an affidavit from Topping wherein the latter deposed that:

> "I sent the sum of $58 000 United States Dollars to Cape Town with a trusted `friend to give my brother Michael so that it will be given to Hariet. This residential Stand I purchased for her as gratuity."

29. Topping attached what appears to be a bank statement reflecting transfer of money into and out of an account. The name of the account holder, account number and currency

under which the account is held are not shown. There is no entry reflecting a withdrawal of an amount of US$58 000 from that account.

30. In these circumstances, I have no difficulty in finding that Thomas Topping was not the source of the money used to pay the purchase price of the property in question.
31. Indeed, neither the name of the "trusted friend" nor an affidavit deposed to by such person has been placed before me.
32. Australia and Africa are continents apart. There is no paper trail showing the lawful movement of an amount of US$58 000 from Australia to Cape Town in South Africa.
33. In a bid to prove that an amount of US$58 000 came to her all the way from Australia the third respondent attached an affidavit from her nephew. Therein the nephew, George Sapuwa, says:

> "2. Sometime in November 2021, I was given an instruction by my mother's sister Hariet Kalira if I was able to bring her money which was in Capetown, since I drive cross border buses from Lilongwe to Cape Town via Harare, Zimbabwe.
> 3. I did as I was instructed and collected the sum of US$58 000 from Michael Topping who is brother to Tom Topping.
> 4. I collected the money on 12th of December 2021 and I delivered the money to Harare to Harret Kalira.
> 5. On my way to Zimbabwe I declared this money since it was a huge sum of figure. Please find attached declaration form from Beitbridge Border Post."

34. Jonia Moyo is employed by the Zimbabwe Revenue Authority (ZIMRA) as a Revenue Supervisor in the Private Imports Section at Beitbridge Border Post. The applicant placed his affidavit before me. Moyo swears that the declaration form referred to in the preceding paragraph is not authentic. His reasons include these. First, the ZIMRA date stamp purportedly reflected on the declaration form had been decommissioned by the time the declaration form was purportedly processed. Second, the name of the ZIMRA official who allegedly proceesed it is conspicuous by its absence. Third, the font on the declaration form does not match that on genuine ZIMRA declaration forms.
35. I note too that there is no evidence that George Sapuwa declared the sum of US$58 000 on the South African side of the border. It will be recalled that there is no paper trail

reflecting the movement of the said amount from Australia to South Africa. This is compounded by the fact that there is no evidence, as I have said, that Sapuwa declared, at the South African side of the border, that he had taken an amount of US$58 000 out of that country.

36. But the third respondent was not yet done. In response to the unexplained wealth order she also attached a statement from Boniface Marani. He swore that he received the sum of US$58 000 from George Sapuwa at Beitbridge Border Post for onward transmission to the third respondent in Harare. He says he was also given the declaration form and that he delivered the money in question to the third respondent in Harare on 19 December 2021.

37. This version is materially different from that deposed to by Sapuwa. According to Sapuwa, the money was never entrusted to anybody else the moment that he collected it from Michael Topping in Cape Town up until he, Sapuwa, personally handed it over to the third respondent in Harare.

38. Sapuwa swore to another affidavit wherein he annexed what he claimed to be the correct declaration form. Moyo said that too was not a genuine ZIMRA declaration form. Significantly no money was reflected as declared, in that form, at Beitbridge Border Post.

39. It was the third respondent who responded to the advertisement that the property in question was on sale. He viewed the property. He made an offer to purchase it on the day that he viewed the property. He paid the purchase price, in cash. He signed the agreement of sale purportedly under a special power of attorney given to him by the third respondent. According to Nancy Machemedze, who represented the seller in the agreement of sale, she interacted with the first respondent in the sale transcation. She neither knew nor interacted with the third respondent. The third respondent did not respond to the advertisement that the property was on sale. The third respondent did not view the property. The third respondent did not offer to purchase the property. The third respondent did not pay the purchase price. I pause to observe that on the mutually destructive versions of Sapuwa and Marani, these two had independently of each other handed over the sum of US$58 000 to the third respondent. One would wonder why the

third respondent did not pay the purchase price herself, let alone viewing the property before making a decision not only to purchase it but also to part with the huge sum of US$52 000.

40. I have no difficulty in finding, as I have done, that the story of Topping funding the purchase of the property is as watertight as a sieve. It is full of loopholes. The first and third respondents, in connivance with Topping, Sapuwa, Marani and possibly others, came up with that version in a bid to conceal the fact that the purchase price was funded by the proceeds of the unlawful conduct perpetrated by the first respondent at NetOne Cellular (Pvt) Ltd. People's names were then thrown around, namely the Topping brothers, Marani, Sapuwa and the third respondent herself. Her name was reflected on the agreement of sale as the purchaser, a non genuine special power of attorney authored and, to cap it all, the payment of the purchase price was made in her name.
41. The reason why the first respondent had to go to the extreme to create false evidence of the source of funds used to fund the purchase of the property was to protect his interests in the property. In addition to the manifest falsity of the purported source of the funds, this Court has been alive not only to the visible hand of the first respondent in the sale itself but also the non-participation of the supposed purchaser in the same. The most probable inference that I draw from these facts is that the purchaser was the first respondent.
42. In terms of s 80(3)(a) of the Act, it is not necessary that the applicant proves that the property was derived directly or indirectly, in whole or in part from a particular serious office. What must be proved, and which was done, is that the property is proceeds from some conduct constituting or associated with some serious criminal offence.
43. The property will be forfeited to the State.

The Toyota Hilux registration number AFN 7886

44. This property is tainted. It too will be forfeited to the State.
45. I am aware that the second respondent argues that the property was acquired from proceeds of Mutanda Mining Syndicate. ("the syndicate").

46. I have seen the purported Joint Venture Agreement between the second respondent and Mathew Mutanda. I have seen documentation indicating that the syndicate was involved in the mining of gold and selling the same to Fidelity Printers and Refiners through Romach Investments (Pvt) Ltd.

47. Also placed before the Court are documents indicating payments made to the syndicate for the gold sold to Fidelity Printers and Refiners through Romach Investments (Pvt) Ltd.

48. I have also seen some invoices written on stationery without a letterhead suggesting that certain cash payments were made to the second respondent by the syndicate as her share of the proceeds realized from the sale of the gold.

49. Despite some elaborate provisions contained in the purported Joint Venture Agreement there is actually no evidence that the second respondent contributed anything to the supposed joint venture. Equally, there is no evidence of either the expenses, losses or profits of the alleged joint venture, its equipment, what Mutanda himself was paid and how the second respondent's alleged payments were calculated. Despite the second respondent alleging that she entered into a Joint Venture with Mutanda on 26 February 2018 there is no evidence of the existence of any books of account for the joint venture for 2018, 2019, 2020 and 2021. All that has been exhibited before the court are the three invoices referred to at para 48 of this judgment together with a very brief affidavit deposed to by Mutanda that he has paid the second respondent all that is due to her in terms of the joint venture. What is missing is primary evidence of the existence of a genuine joint venture agreement between the second respondent and Mutanda as well as credible evidence of the operation of such joint venture.

50. I am satisfied that the first and second respondents, who are parents to the four year old daughter, connived with Mutanda to craft the fictitious joint venture agreement as well as the three invoices referred to in this judgment to give the false impression that the US$32 000 used to purchase this vehicle by the second respondent was her share of the proceeds of the joint venture in the mining syndicate.

51. I reiterate that it is not necessary that the applicant proves that the property was derived directly or indirectly, in whole or in part, from the conduct constituting or associated with any particular serious offence.

52. The property was acquired during the period that the first respondent was engaging, at NetOne Cellular (Pvt) Ltd, in conduct constituting or associated with some kind of serious offence.

53 The applicant having established, on a *prima facie* basis, that the property is tainted, the second respondent has failed to lead credible evidence in rebuttal. See *Matinyarare* v *The Prosecutor General N.O and Ors SC 115/24*. In *Amuti* v *Kenya Anti-Corruption Commission* Civil Appeal No. 184 of 2018 the Court said:

> "The theme in evidentiary burden in relation to unexplained assets is prove it or lose it. In other words, an individual has the evidentiary burden to offer satisfactory explanation for legitimate acquisition of the asset or forfeit such asset. The cornerstone for forfeiture proceedings of unexplained assets is having assets disproportionate to known legitimate source of income. Tied to this is the inability of an individual to satisfactorily explain the disproportionate assets. A forfeiture order under ACECA is brought against unexplained assets which is tainted property; if legitimate acquisition of such property is not satisfactorily explained, such tainted property risk categorization as property that has been unlawfully acquired."

These sentiments, in my judgment, were approved by the Supreme Court in *Matinyarare* v *The Prosecutor General N.O and Ors (supra)* where MUSAKWA JA, writing for the Court, said at 16:

> "In addition, an individual with legitimate income should have no trouble proving the origins of his or her assets."

Costs

54. I think it fair that there be no order as to costs. On the basis of the concessions referred to elsewhere in this judgment the application for a civil forfeiture order of some of the properties listed in the draft order will be dismissed. In fact, those properties constitute the bulk of the assets originally targeted for forfeiture. Although the applicant has succeeded in its application for a civil forfeiture order, the success has been restricted to two properties out of the initial six covered in the application.

Order

55. **IT IS ORDERED THAT**:

1. The application for an order for the civil forfeiture of the following property be and is dismissed:
    a. BMW 3 series Sedan registration number AFP 8489.
    b. Mercedes Benz Sedan registration number AFU 0067
    c. Mercedes Benz Sedan registration number AFI 5420
    d. Mercedes Benz Sedan registration number AFS 1338
2. The Toyota Hilux registration number AFN 7886 be and is forfeited to the State.
3. The second respondent shall within seven days of the date of handing down of this judgment do all such things and complete and sign all such papers and documents necessary to transfer registration and ownership of the property mentioned in paragraph 2 of this order to the State failing which the Sheriff for Zimbabwe, his deputy or assistant shall do so.
4. The fifth respondent shall upon being called upon by the applicant to do so do all things and sign and complete all papers and documents to register ownership of the property mentioned in paragraph 2 of this order in favour of the State.
5. The application for an order for civil forfeiture of the BMW 320d chassis number WBA3036080NPA532 be and is removed from the roll.
6. An undivided 6,0283% share being share number 18 in certain piece of land situate in the District of Salisbury called Stand 913 Mandara Township measuring 3,6134 hectares held under Deed of Transfer Registered Number 3518/2016 be and is forfeited to the State.
7. The third respondent shall within seven days reckoned from the date of the handing down of this judgment do all things and complete and sign all such papers and documents necessary to transfer title in the property mentioned in paragraph 6 of this order to the State failing which the Sheriff for Zimbabwe, his deputy or assistant shall do so.

8. The fourth respondent shall upon being called by the applicant to do so register transfer of title in the property mentioned in paragraph 6 of this order in favour of the State.
9. Each party shall bear its own costs.

CHIKOWERO J ……

The National Prosecuting Authority, applicant's legal practitioners
Malinga Masango Legal Practice, first and third respondents' legal practitioners